

Professional Agreement

For

The Board of Education of

Cook County School District 154

And

The Thornton Education Association

IEA-NEA

2022-2027

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ARTICLE I RECOGNITION AND DEFINITIONS

1.1 Recognition

The Board of Education of Cook County School District 154, Illinois, (hereinafter referred as to the “employer” or the “Board”) recognizes the Thornton Education Association IEA-NEA (hereinafter referred to as the “Association”) as the sole and exclusive bargaining representative for all full-time teachers and part-time teachers, (hereinafter referred to as the “employee,” “teacher” or “bargaining unit member”), exclusive of substitutes, short-term employees, social worker, psychologist, the nurse, speech therapist, and supervisors, as defined by the Illinois Educational Labor Relations Act. “Part-time” shall include regularly employed teachers who work a minimum of three (3) periods or more a school day for a school term.

1.2 Definitions

A. Agreement

The term Agreement shall indicate the formal contract as approved between the Board of Education and the Thornton Education Association.

B. Employer

The term employer, Board of Education shall indicate the Board of Education.

C. Superintendent/Administration

The terms Superintendent and Administration shall mean the Superintendent of Schools or his/her designee.

D. Association

The term Association shall indicate the sole and exclusive bargaining representative.

E. Days

The term “days” when used in this Agreement shall, except where otherwise indicated, shall be school days, which mean teacher workdays, except on or after the close of the school each school year, in which case time limits shall be weekdays on which the District business office is open.

ARTICLE II EMPLOYEE RIGHTS

2.1 Teaching Assignment

- A. Teachers are to be notified of their tentative assignments of the following school year by the end of the preceding school year. A teacher shall be notified in writing of any changes in his/her assignment by July 31. In the event of a change resulting from an unforeseen emergency as determined by the school administration or Board, beyond July 31, the Association and the teacher shall be notified and the teacher shall be allowed to resign without penalty if such change is not acceptable to the teacher.
- B. In the event of emergencies after July 31, any teacher who has already purchased materials for his or her classroom/teaching assignment and is notified of a change shall have the option of selling to the school at actual cost any items purchased over that summer in preparation for the previous assignment
- C. All vacant positions which the Board has decided to fill shall be posted. Current employees shall be considered for such vacancies. The Board shall make the selection for the position.
- D. The District may not terminate or RIF a full-time teacher in order to replace that teacher with two part-time teachers.
- E. Co Teaching is utilized to help support students in the academic setting, Particularly students needing EL services or identified with a disability as stated in their IEP or 504.
 - a. Co Teachers should meet weekly with the teacher of record for lesson planning, class preparation, grading, accommodations, scaffolding, etc.
 - b. Co Teachers should be in the classroom for the duration of the class unless they are pulling small groups (as needed).
 - c. Co Teachers may be pulled for meetings, but they will not be pulled to substitute for classes unless there is an emergency, and no other teacher (including interventionists) can be found to substitute.
- F. Interventionists and specialists are utilized to help support students in the academic setting, particularly in the area of reading and math.
 - a. Interventionists should meet monthly with the teacher of record for lesson planning, class preparation, scaffolding, etc.
 - b. Interventionists shall be in the classroom for the duration of the class unless they are pulling small groups (as needed).
 - c. Interventionists may be pulled for meetings, but they will not be pulled to substitute for classes unless there is an emergency, and no other teacher (including classroom support teachers) can be found to substitute.

- G. Teachers who have open periods shall be assigned to a classroom as the “classroom support teacher”.
 - a. These “classroom support teachers” may be pulled to substitute for other classes.

2.2 Open House

All teachers shall attend the District open house unless excused by the Superintendent.

2.3 In-service

- A. All teachers shall attend one (1) professional in-service workshop outside of the School District with prior approval of the administration each year. Fees for such approved workshops will be paid by the District. Exceptions may be granted by the Superintendent for teachers currently enrolled in approved courses. Attendance at additional workshops may be granted at the discretion of the Board and Superintendent. Priority in consideration will be given to those individuals who are in the process of re-certification. The Board and Superintendent will make every reasonable effort to make the number of workshops equitable.
- B. District shall develop an in-service committee to develop and make yearly recommendations regarding in-service training sessions for staff. All teachers shall be surveyed at the end of the previous school year pertaining to their needs and recommendations for presenters for the upcoming school year. Surveys should be given by May 1.
- C. The District will provide CPDUs within 10 days of completion of in-service trainings.
- D. If the District doesn't provide CPDUs within 10 days of completion of in-service trainings, then the District will provide additional reimbursement for tuition/workshop fees up to a total of \$2000 in a school year per person.

2.4 Personnel Files

- A. There shall be only one (1) official personnel file for each employee. Prior to any material being placed in any employee's file, a copy of such material shall be signed by the employee and provided to the employee. An employee's signature on a document indicates that the employee is aware of it but does not necessarily agree with it. Each employee shall have the right, upon 2 days notification, to review the contents of his/her file with the exception of items contained in 820 ILCS 40/1, et seq. (Personnel Records Review Act) and to place therein written reactions to any of its contents or to obtain copies thereof.
- B. Four (4) years after the placement of discipline in his/her personnel file, the teacher shall have the right to petition the District's Superintendent to remove discipline write

up and all other paperwork pertaining to said write up, provided the teacher's personnel record has remained without disciplinary write ups during that four year period. Removal of discipline from a personnel file is in the sole discretion of the Superintendent and shall not be subject to the Grievance Procedure set forth herein.

2.5 Representation

- A. A bargaining unit member shall be entitled to have a representative of the Association present during any meeting which leads to disciplinary action. When a request for such representation is made, no action shall be taken with respect to the bargaining unit member until such representation of the Association is present. Should disciplinary action likely occur at a given meeting, the bargaining unit member shall be advised immediately of said possibility and be advised of the right to representation under this provision of the Agreement. If a bargaining unit member fails to secure a representative in a reasonable amount of time, that failure shall not prevent the holding of the meeting.
- B. When a teacher is required to meet with the Board, he/she shall be advised in writing of the reason(s) for the meeting at least 24 hours before the requested appearance. In an emergency situation or extraordinary situation, the Board may reassign the teacher with pay, fringe benefits, and all other benefits provided by the contract pending the determination of the investigation. In those instances where a teacher is placed on administrative leave, the action will be accompanied by a public statement, if necessary, that the action is taken for non-disciplinary purposes.

2.6 Workday

- A. The length of the workday for all employees shall be no more than ten (10) periods, including preparation periods and lunch periods. The employee workday will begin at 8:00 a.m. and conclude at 3:30 p.m. However, the employee workday will begin at 8:15 on the first day of the work week, and the employee workday will end 10 minutes after student departure on the last day of the work week.
- B. On the last day of school, teachers may leave immediately after the students' departure once all records are complete and appropriately filed. A teacher institute day will not be scheduled for the last day of the teachers' work year without first consulting with the Association.

2.7 Lunch

All employees shall have a duty-free lunch equal to that of the students but in no case less than thirty (30) minutes.

2.8 Preparation Periods

- A. Except to the extent an employee is given an internal substitution assignment as provided in Section 2.17, all employees shall be provided preparation periods during the student attendance day, exclusive of recess and blocks of time less than fifteen (15) minutes in duration. Preparation time shall be a minimum (40) minute periods unless the Association and Board agree to change with exceptions granted on days with a shortened schedule due to an early dismissal, school assembly, PBIS Celebration, or other school-related special activity. This item shall be reopened for negotiation if Administration deems it necessary.
- B. Teachers shall not be required to attend more than two (2) meetings during their preparation period during a given week. Under unusual circumstances, when a teacher is required to attend more than two (2) meetings during the same week, the teacher will be compensated at the internal substitution rate for each meeting over two (2). Meetings are defined as special education staffings and TAT meetings.

2.9 Additional Assignment

When a teacher accepts an additional teaching assignment on a regular basis during his/her planning time, the teacher will be proportionally compensated, based upon the employee's per diem rate, for the planning period(s) forfeited.

2.10 School Calendar

- A. The school term calendar shall consist of one hundred eighty-five (185) days, inclusive of institute days and emergency days. Unused emergency days shall not become workdays. The work year for employees shall not exceed one hundred eighty (180) days.
- B. The Administration shall prepare at least 2 versions of a calendar for the following year for presentation to the Board of Education. These versions will be emailed to all the members of the Association for review and comment prior to a final recommendation to the Board. The Board shall receive copies of all comments provided to the Administration prior to the Board adopting a calendar for the following year.
- C. The School Board shall notify teachers of the calendar no later than the last day of the school year.

2.11 Reimbursement

- A. If an employee is required to travel on school-related business authorized by the Board, the employee shall receive reimbursement at the maximum rate allowable

by the IRS which is in effect on July 1 each year. Said reimbursement shall be paid within forty-five (45) days of the submission of the mileage expense.

- B. Employees shall receive reimbursement for the cost of preapproved classroom supplies for at least three hundred dollars (\$300) per school year. This money (if not used by the individual teacher) may be “donated” to another teacher or classroom (ex. art, music, science, library) if the teacher chooses. Said reimbursement shall be paid within forty-five (45) days of the submission of the receipts.

2.12 Lunch/Work Room

The Board shall provide a District employee lunch/work room until the space is needed for educational purposes as determined by the Board.

2.13 Jury Duty Pay

The Board shall pay the regular salary to teachers called to service as jurors. Any compensation received for transportation or meals shall be retained by the teacher. Any other compensation shall be returned to the District.

2.14 Answering Machine/Voicemail

The Board shall maintain an answering machine/voicemail system. In order to allow sufficient time to arrange for a substitute teacher, a teacher will call in when using sick leave, prior to the use of such leave, between the hours of 4:00 p.m. to 6:00 a.m., unless other prior notification has been given, or as soon as the teacher is aware of an illness that occurs after 6:00 a.m.

2.15 Parent/Teacher Conference

There shall be two (2) Parent/Teacher Conference days per year. These days may be scheduled, at the discretion of the Board and Administration, either as scheduled in the preceding agreement or as a partial student attendance day, followed by an evening conference period and a morning conference period the following morning. Should the second method be chosen, the evening session will conclude by 8:00 p.m., shall include a sixty (60) minute dinner break, and shall be no longer than four and a half (4.5) hours, inclusive of the dinner break. The morning session shall not begin prior to 9:00 a.m. and will be no more than three hours in length.

2.16 Internal Substitution

In an emergency situation, when a qualified substitute cannot be obtained, staff members may be asked to volunteer to cover an absent teacher’s class. This will be done on a

rotating basis with a teacher who does not have students assigned to them at that time. If no teacher volunteers, the administration may assign a teacher on a rotating basis to cover the class. Teachers who volunteer or are assigned an internal substitution responsibility will be paid at the rate set forth in this agreement. In situations where the administration cannot find a substitute teacher for more than two weeks the teacher will be paid at a prorated per diem rate. The teacher and administration shall work together to ensure that a teacher's internal substitution assignment does not encroach on his/her ability to teach his/her own class.

2.17 Teacher Dress Code

It is the goal of the Board and the Association that teachers within the district always display professionalism and believe that this begins with professional dress. Professional dress elicits respect, models good business attire to the students, and makes us all look professional. Instructional staff are expected to be neat, clean, and covered. This dress code will be applied for all the days students are present, Open House and Parent/Teacher Conferences.

Examples of appropriate attire include but are not limited to: casual shirts with collars, banded collar shirts, dress blouses or tops for women, slacks, cotton twill pants, Capri pants for women, dress shorts and skorts (in season, as defined for students in the student handbook). Examples of unacceptable clothing include but are not limited to: flip flops, pajamas, and clothing that exposes areas of the body which should be covered in a professional environment. Hair coloring shall be only in naturally occurring colors (this does not mean the teacher's natural color, but rather someone's natural color). Exceptions can be made for this provision for educational purposes with prior administrative approval. (e.g. weekly school spirit days or wearing pajamas when students are during the Polar Express.)

2.18 Salary Schedule Placement

Each teacher hired shall be placed on the salary schedule at the step which accurately represents his/her prior actual state-certified PreK-12 teaching experience, not to exceed 11 years. Teaching experience which took place up to twenty (20) years preceding the date of hire will be considered.

2.19 Teacher Discipline

- A. No bargaining unit teacher shall be disciplined--including warnings, reprimands, suspensions, reductions in rank for professional advantage, or other actions of a disciplinary nature--without just cause. Any such discipline shall be subject to the grievance procedure hereinbefore set forth including binding arbitration. The specific grounds forming the basis for disciplinary action will be made available to the bargaining unit member and the Association in writing.

B. When applicable, discipline will be performed in a progressive manner and shall consist of:

1. Mentoring

Mentoring is an opportunity for the employee and the supervisor to informally discuss work-related problems and concerns. The mentoring session is designed to help the employee:

- a. Recognize the mistake or deficiency
- b. Accept the standard that is required
- c. Clarify expectations and standards
- d. Understand the consequences of failing to meet the standard
- e. The mentoring session may be documented with a memo to the administrator's employee desk file, not the teacher's personnel file

2. Oral Warning

The oral warning shall be delivered to the employee by the supervisor. The supervisor shall draft a memorandum of oral warning. A copy of such memorandum shall be served upon the employee who shall sign a copy to acknowledge receipt thereof and to further acknowledge the employee's understanding that the signed copy shall be retained by the supervisor in the administrator's employee desk file, not the teacher's personnel file.

3. Written Warning and Discipline Conference

Where a more severe infraction has occurred, or where the conduct giving rise to the oral warning has not been resolved, the employee and supervisor shall meet to discuss the problem. At said meeting, acceptable performance shall be discussed. A written memorandum shall be prepared and a copy shall include the following information:

- a. The concern(s) in need of improvement
- b. The expected step(s) necessary to improve
- c. The scheduled time frame to monitor improvement
- d. The date for a follow-up conference to be given to the employee and all persons present shall sign said memoranda and a copy shall be placed in the teacher's personnel file.

If an investigation is warranted, it shall be conducted and completed within twenty (20) days. In the event an unforeseen circumstance(s) may cause a delay in the investigation, the administration and the Association will meet to extend the investigation deadline.

Failure to comply with the twenty (20) day investigatory requirement (provided there are no agreed upon extensions) will result in the complaint being declared null and void. Unfounded complaints will not be placed in the teacher's personnel file.

If during the investigation, the teacher(s) is/are interviewed, the teacher(s) shall have the right to have a representative present. After the completion of the investigation conducted in accordance with 4 (C), the teacher may

respond in writing to such complaint. The response shall be placed in the teacher's personnel file.

4. Suspension During Investigation

Nothing herein shall be construed to limit the Board's authority to effect a suspension with pay, fringe benefits, and all other benefits provided by the contract for an unlimited duration, for purposes of conducting an investigation into allegations received concerning an employee.

C. A bargaining unit member shall be entitled to:

1. an Association representative(s) present during any meeting which may lead to disciplinary action. When a request for such representation is made, no meeting shall begin with respect to the bargaining unit member until a representative of the Association is present. Should disciplinary action likely occur at a given meeting, the bargaining unit member shall be advised immediately of said possibility and be advised of the right to representation under this provision of the Agreement
2. at least three hours' notice before any oral warning
3. at least 24 hours' notice before any further disciplinary action. If mutually agreed upon by the teacher, the administration, and the Association, this timeline may be shortened.

D. Harassment

1. Employees shall be free from unnecessary, spiteful, or negative criticism or complaints by administrators and/or other persons. Under no conditions shall management representatives express such complaints or criticisms concerning an employee in the presence of other employees, students, or parents, nor shall anonymous complaints go through this process 4.
2. Employees should not be subjected to harassment, abusive language, upbraiding, insults, or interference by a parent or other person in the performance of the employee's duties.

2.20 Cleanliness

- A. For the health and safety of all students, it is the goal of all who have an invested interest in Wolcott School that the school building will always be at a level of cleanliness that all can be proud of. Therefore, the District is expected to
- a. maintain an appropriate cleaning staff
 - b. disinfect on a daily basis all classrooms, hallways, bathrooms, offices, and any other areas teachers and students come into contact with
 - c. deep clean the building professionally a minimum of four (4) times a year
 - d. establish a pest control program
 - e. reimburse teachers for the purchase of any preapproved cleaning products that they need for their classrooms.

ARTICLE III MANAGEMENT RIGHTS

3.1 Board Authority

The Board, on its own behalf and on behalf of the electors of the District, hereby retains and reserves unto itself all powers, rights, authority, duties and responsibility conferred upon and vested in it by the statutes and Constitution of the State of Illinois and the United States, along with decisional law by the courts, provided that such rights and responsibilities shall be exercised in conformity with the provisions of the Agreement and the rules and regulations of the Illinois Educational Labor Relations Act. All powers, rights, authority and responsibilities not included in this Agreement are reserved for the Board.

ARTICLE IV GRIEVANCE PROCEDURE

4.1 Definitions

- A. A grievance is a written complaint by a teacher or the Association that there has been a violation, misapplication, or misinterpretation of this Agreement.
- B. All time limits shall be school days, which means teacher workdays, except when a grievance is submitted on or after the close of the school each school year, in which case time limits shall be weekdays on which the District business office is open. By mutual written agreement, the time limits may be changed.
- C. All documents, communications, and records dealing with the processing of a grievance shall be filed separately from the personnel files of the participants.

4.2 Procedures

A. Informal Step

The grievant shall attempt to resolve any complaint in an informal oral discussion with the administrator or the administrator's designee within twenty (20) days of the knowledge of the event giving rise to the complaint.

B. Formal Step One

If the complaint is not resolved informally, the grievance shall be filed, in writing, with the administrator or his/her designee within ten (10) days after the Informal Step oral discussion. The administrator or his/her designee shall confer with the

grievant and the Association's representative in an attempt to resolve the grievance and shall render a written statement giving the basis for decision within ten (10) days of the filing of the grievance at Formal Step One. A copy of the decision shall be given to the Association.

C. Formal Step Two

If a mutually satisfactory agreement is not reached at Formal Step One, the grievant may file the original grievance with the Superintendent within ten (10) days after receiving the written decision in the Formal Step One. The administrator or his/her designee and the Association shall receive a copy of this communication. The Superintendent shall confer with the grievant and the Association Representative, and render a written statement giving the basis for his/her decision within ten (10) days of the filing of the grievance at Formal Step Two. A copy of the decision shall be given to the Association. If the grievance was heard at Formal Step One by the Superintendent, then Formal Step Two shall be omitted.

D. Formal Step Three

If the grievance is not resolved at Formal Step Two, then the Association may refer the grievance to the School Board within ten (10) days after the receipt of the Formal Step Two decision. The Board shall, in executive session, meet with the grievant(s) and the Association representative(s) at the next regularly scheduled Board meeting. Within ten (10) days of the meeting, the Association shall be provided with the Board's written response including the reasons for the decision.

E. Formal Step Four

If the Association is not satisfied with the disposition of the grievance at Formal Step Three, the Association may submit the grievance to final and binding arbitration. If a demand for arbitration is not filed with the employer within ten (10) days of the date of the Formal Step Three answer, then the grievance shall be deemed withdrawn. The demand shall be submitted to the American Arbitration Association, which shall act as an administrator of the proceedings pursuant to the Voluntary Labor Arbitration rules of the American Arbitration Association.

1. Neither the Board nor the Association shall be permitted to assert any grounds or evidence before the arbitrator which was not previously disclosed to the other party.
2. The arbitrator, in his/her award, shall not amend, modify, nullify, ignore or add to the provisions of the Agreement. His/her authority shall be strictly limited to deciding only the issue or issues presented to him/her in writing by the School Board and the Association, and his decision must be based

solely upon his/her interpretation of the meaning or application of the express relevant language of the Agreement.

3. The arbitrator is empowered to include in an award such financial reimbursements or other remedies related to the grievance.
4. The fees and expenses of the arbitrator and all costs assessed by the American Arbitration Association shall be divided equally between the Board and the Association.
5. If either party requests the presence of a court reporter and a transcript of the proceedings, that party shall bear the full costs of such. If both parties order the presence of a court reporter and a transcript, the cost shall be equally divided between the parties.
6. Should an arbitration hearing require that an employee and/or Association representative be released from his or her regularly scheduled duties, the employee and/or Association representative shall be released without loss of pay, leave time, or benefits.

4.3 Bypass

By mutual agreement, any step of the grievance procedure may be bypassed.

4.4 No Reprisals

Nor reprisals shall be taken by the Board, Administration, or the Association against any employee because of the employee's participation or refusal to participate in a grievance.

4.5 Released Time

Should the investigation or processing of any grievance require an employee or an Association representative be released from their regular assignment, the Association shall pay the cost of substitutes, if a substitute is provided.

4.6 Filing of Materials

All records related to a grievance shall be filed separately from the personnel file of the employee.

4.7 Grievance Withdrawal

A grievance may be withdrawn or settled at any level with establishing precedent.

4.8 No Written Response

If no written decision has been rendered within the time limits indicated by a step, then the grievance shall be deemed denied.

4.9 Cooperation by the Parties

The Board and the Administration on the one hand and the Association and teachers on the other will cooperate with the other party in the investigation of any grievance, and further, will furnish the other party with information upon which the grievance is based, to the extent permitted by law.

4.10 Postponement

If only one (1) party requests the postponement of an arbitration hearing, that party shall bear the cost of such postponement.

4.11 Association Representative

The Association may have its representative present at any step of the grievance procedure.

4.12 Expedited Arbitration

Upon completing a mutual written agreement by the Superintendent and Association, the expedited arbitration rules of the American Arbitration Association shall be utilized instead of the voluntary labor arbitration rules.

4.13 By-pass of Arbitration to Grievance Mediation

By mutual written agreement, the Superintendent and Association may elect to enter into grievance mediation prior to submitting the grievance to arbitration. The parties shall mutually agree, in writing, on the procedures for mediation, including the handling of any costs to implement the process.

ARTICLE V ASSOCIATION RIGHTS

5.1 Information

The Board agrees to furnish to the Association the following:

- A. An agenda of all Board meetings the same day the Board members receive it.
- B. The use of designated school bulletin boards for internal communication.

- C. The use of school buildings for meetings with the prior approval of the Superintendent or his/her designee.
- D. The Board agrees to make available for reproduction to the Association upon request, all available public information already compiled concerning the financial resources of the District such as, but not limited to, annual financial reports and audits, annual budgets, and treasurer's reports.
- E. Names, home addresses, phone numbers, and job titles of all bargaining unit members shall be provided to the Association president by September 15 of each school year. Such information pertaining to employees hired after September 15 shall be provided to the Association within fifteen (15) days of the date of hire of a new employee.

5.2 Fair Share

- A. Each bargaining unit member, as a condition of his/her employment, on or before thirty (30) days from the date of commencement of duties or the effective date of this Agreement, whichever is later, shall join the Association or pay a fair share fee to the Association equivalent to the amount of dues uniformly required of members of the Association, including local, state and national dues.
- B. In the event that the bargaining unit member does not pay his/her fair share fee directly to the Association by a certain date as established by the Association, the Employer shall deduct the fair share fee from the wages of the non-member.
- C. Such fee shall be paid to the Association by the Employer no later than ten (10) days following deduction.
- D. In the event of any legal action against the Employer brought in a court or administrative agency because of its compliance with this Article, the Association agrees to defend such action, at its own expense and through its own counsel, provided:
 - 1. The Employer gives immediate notice of such action in writing to the Association and permits the Association intervention as a party if it so desires, and
 - 2. The Employer gives full and complete cooperation to the Association and its counsel in securing and giving evidence, obtaining witnesses and making relevant information available at both trial and all appellate levels.
- E. The Association agrees that in any action so defended, it will indemnify and hold harmless the Employer from any liability for damages and costs imposed by a final judgment of a court or administrative agency as a direct consequence of the Employer's non-negligent compliance with this Article.

- F. It is expressly understood that this hold harmless provision will not apply to any claim, demand, suit or other form of liability which may arise as a result of any type of willful misconduct by the Employer or the Employer's imperfect execution of the obligations imposed upon it by this Article.
- G. The obligation to pay a fair share fee will not apply to any Employee who, on the basis of a bonafide religious tenet or teaching of a church or religious body of which such Employee is a member or a belief sincerely held with the strength of traditional religious views, objects to the payment of a fair share fee to the Association. Upon proper substantiation and collection of the entire fee, the Association will make payment on behalf of the Employee to a mutually agreeable non-religious charitable organization as per Association policy and the Rules and Regulations of the Illinois Educational Labor Relations Board.

5.3 Association Leave

In the event that the Association desires to send representatives to local, state or national conferences, these representatives shall be excused without loss of salary or benefits providing the Association reimburses the District for the cost of the substitute(s), with a limit of three (3) teachers being gone on any one (1) day, and that a written notice for leave has been submitted ten (10) days in advance to the Superintendent by the Association.

5.4 Mailboxes

The Association shall have the right to use school mailboxes.

5.5 Payroll Deductions

A. Procedures for Membership Authorization

Proper authorization for membership payroll deductions shall be the signature of the employee on an authorization form prepared by the Association and submitted to the Superintendent or his/her designee. Such authorization shall remain effective from year to year unless the employee cancels such authorization by notice in writing to the Superintendent and the Association prior to September 1st of any school year, to be effective for that year.

B. Payment to the Association

Authorizations submitted to the superintendent or his/her designee by the fifteenth (15th) of any month shall become effective by the first pay period of the following month. Such payroll deductions shall be equally deducted over the remaining pay

periods and remitted to the Association within ten (10) working days following each pay period.

5.6 Association Meetings

The Association shall have the right to begin meetings 10 minutes after the students are dismissed one time monthly. Any additional meetings will be held outside of the regular workday.

ARTICLE VI LEAVES

6.1 Pregnancy Related Disability and Child Care Leave

A. Pregnancy Related Disability Leave

Any certified employee who becomes pregnant may request a pregnancy related disability leave of absence. The request shall include a physician's statement certifying pregnancy.

1. As with any disability, affected teachers will be subject to continuing status reports by the teacher's physician as to their health and ability to continue teaching for a specific amount of time prior to the disability and, upon taking the disability leave and selecting in advance a date to return, the physician shall verify to the Superintendent that the period of disability has ended or is continuing beyond the anticipated date of return. The above does not preclude the Board's right to require a physician examination from a physician selected by the Board as may be deemed necessary by the Board pursuant to Section 24-6 of the Illinois School Code. If a physician is required by the Board, such expenses shall be paid by the District.
2. The teacher's seniority is not affected by the pregnancy-related disability leave during the period of time mentioned above. For probationary teachers, however, disability leave in excess of accumulated sick leave will result in a loss of probationary service credit if a teacher works less than ninety (90) school days.
3. The pregnancy related disability leave shall be for a period of time as certified by the employee's doctor. This leave time shall not be in addition to the leave time provided for under 6.3, Family Medical Leave Act.
4. Employees may use accumulated sick leave during the period of pregnancy-related disability.

B. Child Care

Any teacher who desires a child-care leave shall apply for this leave in writing ninety (90) days before the due date of the child. This leave shall be for the remainder of the school year and one (1) additional year if the teacher so desires. Such leave is without pay or benefits. The employee shall notify the Superintendent of his/her desire to return by March 1 or within sixty (60) days of the expiration of the leave, whichever is sooner.

6.2 Adoption Leave

Any teacher desiring adoption leave as a result of becoming an adoptive parent shall notify the Superintendent or his/her designee in writing upon the initiation of such adoption proceedings. Adoption leave shall be granted upon satisfactory written notification to the Superintendent or his/her designee of the date the child is expected to be received. It shall be the responsibility of the applying teacher to keep the Superintendent or his/her designee fully informed to the expected date of the delivery of the child. Adoption leave, when possible, will meet all requirements and time limitations of Pregnancy-Related Disability Leave and such leave shall not be in addition to the leave time provided under 6.3, Family Medical Leave Act.

6.3 Family Medical Leave Act

Teachers are entitled to leave according to the terms of the Family Medical Leave Act subject to the following provisions:

A. Definitions

As used in this Section:

1. "Eligible teacher" means a full-time teacher who has been employed with the District for at least twelve (12) months.
2. "Equivalent position" shall mean the same position an eligible teacher had prior to the leave if he/she returns on or before twelve (12) workweeks.
3. "Academic term" means the school year.
4. "Daughter" or "son" shall be defined as a biological, adopted or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis.

5. Other terms shall be defined in the Family Medical Leave Act (P.L. 103-3) and rules and regulations as promulgated by the United States Department of Labor.

B. Purposes

Eligible teachers shall be granted leave during any school year for one or more of the following reasons:

1. the birth of a child;
2. the adoption of a child or the placement of a foster child;
3. to care for a spouse, son, daughter, parent or parent-in-law who has serious health conditions; and
4. a serious health condition that makes the teacher unable to perform her/his job.

C. Duration

Eligible teachers shall be granted a total of twelve (12) workweeks of unpaid leave during any school year for one or more of the purposes provided in paragraph "B" above.

Spouses who are both employees of the District shall be entitled to a combined total of twelve (12) workweeks of family leave for birth, foster care, or care of a sick parent. Each spouse shall be entitled up to twelve (12) workweeks to care for spouse or child, or the employee's own serious health condition.

Sick and Personal days used by the teacher shall be counted toward the period of the Family Medical Leave if the days are used for the same purposes as the Family Medical Leave.

D. Notification

In any case in which the necessity for leave under subparagraphs "B.1" or "B.2" is based upon an expected birth or placement, the eligible teacher shall provide the Superintendent at least thirty (30) calendar days notice before the date the leave is to begin, of the teacher's intention to take leave under such subparagraph. Where due to unforeseen circumstances, such notice is not practicable, said teacher shall provide as early a notice as practicable.

In any case in which the necessity for leave under subparagraphs "B.3." or "B.4." is based upon illness or a serious health condition, the eligible teacher shall make

every reasonable effort to schedule the treatment so as not to disrupt unduly the operations of the District, subject to the approval of the health care provider. The eligible teacher shall provide the Superintendent with not less than thirty (30) calendar days notice before the date the leave is to begin, of the teacher's intention to take the leave. Where due to unforeseen circumstances such notice is not practicable, the teacher shall provide as early a notice as practicable.

E. End of School Year

There are different rules for instructional personnel who begin leave more than five (5) weeks before the end of a school year and less than five (5) weeks before the end of the school year. Regular rules apply except in circumstances when the leave begins:

1. Before the five (5) weeks prior to the end of a school year, the Superintendent may require the leave to extend to the end of the school year if the leave is of at least three (3) weeks and the return to duty would occur within three (3) weeks of the end of the school year.
2. Five (5) weeks or fewer prior to the end of a school year, the Superintendent may require the leave to extend to the end of the school year if the leave is of at least three weeks and the return to duty would occur within three (3) weeks of the end of the school year.
3. Less than three (3) weeks prior to the end of the school year the Superintendent may require the leave to extend to the end of the school year if the leave is greater than five (5) working days.
4. If in the event the Superintendent requires an employee to remain on leave pursuant to her/his authority under this Section of the Agreement, the District shall maintain the affected employee's wages, benefits and other such provisions as may be contained in the Article at the level enjoyed by the employee prior to the requirement to remain on leave. If the employee was using Sick Leave and/or Personal Leave for all or part of the leave prior to the requirement to remain on leave, the employee shall continue to receive salary and benefits without further deduction of her/his personal sick leave or personal leave accumulation. No teacher shall involuntarily lose wages, District paid insurance premium subsidies or other benefits due to the Superintendent's exercise of his/her rights under this Section.

F. Benefits

No eligible teacher taking Family Medical Leave shall experience the loss of benefits, such as group life insurance, or pension benefits accrued before the date

the Family Medical Leave started. The teacher may continue coverage at her/his own expense if said leave is extended beyond twelve (12) workweeks.

G. Written Certification

For subparagraph “B.3.” and “B.4.”, the teacher shall provide a written certification from a health care provider of the reasons for the teacher’s request for Family Medical Leave. The Board may, at its own expense, require the opinion of a second health care provider to confirm or challenge the certification from the teacher’s health care provider. In the case of conflicting opinions, the Board, at its own expense, may require a third opinion from a jointly selected health care provider. The third opinion shall be determinative. The second or third opinion provider shall not be employed nor contracted by the Board in any capacity.

During the period of the leave the Board may require, at reasonable intervals and at its own expense as to the teacher’s fitness to return to work or confirmation of the leave, as may be appropriate.

H. Failure to Return From Leave

The District may recover the premium that the District paid to maintain coverage for the teacher under such group health plan during any period of the unpaid leave if the teacher fails to return to work for any other reason than:

1. the continuation, recurrence, or onset of a serious health condition that entitles the teacher to leave under the provisions of “B.3.” or “B.4.” above, or
2. other circumstances beyond the control of the teacher.

6.4 Military Leave

Teachers serving as members of the reserve components of the armed services shall satisfy their obligations for extended duties during the time school is not in session. In instances where this is not possible, a leave of up to two (2) weeks will be granted.

If the teacher is mobilized to active military duty as a result of an order of the President of the United States, the teacher shall for each pay period continue to receive the same regular compensation he/she was receiving at the time of mobilization, plus any health insurance and other benefits, minus the amount of his/her base pay for military service, for the duration of his/her active military service.

If a teacher's reserve unit is activated for any other reason during the school year, the teacher shall continue to receive his/her full salary as a teacher for the first two (2) weeks of the period of active military service duty. A teacher required to remain on active duty for any additional period and who receive his/her full salary for the first two (2) weeks of

the period of active military service duty shall return to the Board such portions of his/her teaching salary so paid as is equal to the payment he/she received from his/her armed forces reserve unit, excluding, however, all payments received from the armed forced unit which are allocable to non-school days or which constitute travel meal, or housing allowance.

6.5 Sabbatical Leave

Every School Board may grant a sabbatical leave of absence to a tenured teacher performing contractual service for a period of at least four (4) months, but not in excess of one school term for resident study, research or travel or to other purposes designed to improve the school system.

This leave may be granted after completion of at least six (6) years of satisfactory service as a full-time teacher.

Before a leave is granted, the applicant shall agree in writing that he/she will return to and perform contractual continued service in the District for at least one (1) school year after his/her return or all the sums of money received from the Board during his/her sabbatical leave will be refunded to the Board unless his/her return is prevented by illness or incapacity.

6.6 Leave Without Compensation

- A. A leave of absence without compensation may be granted to teachers for cause as determined by the Board. Written requests shall be made to the Superintendent stipulating the purpose and length of the leave and will be subject to Superintendent and Board approval.

A leave without pay may be granted by the Superintendent for a shorter period of time, generally for four (4) weeks or less, for employees who have used up personal leave or sick leave or for which sick leave is not appropriate. The reason for such leave shall be given to the Superintendent in order for him/her to make his/her decision. The employee will resume a position for which he/she is legally qualified.

- B. Upon seven (7) days prior written application to the Superintendent, a leave of absence without compensation may be granted to a teacher for the purpose of caring for an incapacitated parent, spouse, sibling, son, daughter or member of the teacher's household. The period of leave shall be without salary or other benefits, except the teacher may retain insurance benefits by paying all premiums due on a timely basis to the District. The minimum length of leave shall be the balance of a semester and the maximum leave shall be the balance of the school year in which the leave begins. The length of the leave shall be stated in the application and once granted, shall not be subject to any extension.

The application shall be supported by a certification form from a physician that the member of the family or household is incapacitated and requires continuous care and a certification by the teacher that no other member of the family or household is available to provide the care.

- C. In addition to this section, leave will be granted as required by the Family Medical Leave Act.

6.7 Sick Leave

- A. Twelve (12) days sick leave with full pay shall be granted each teacher by the Board on the first day of each work year. Teachers with more than twelve (12) full years of experience in the District shall be granted fifteen (15) days sick leave per year. The unused amount shall accumulate without limit. Such sick leave may be used for personal illness or serious illness or death in the immediate family or household. The immediate family shall be defined as parents, spouse, brothers, sisters, children, grandparents, grandchildren, nieces, nephews, parents-in-law, brothers-in-law, sisters-in-law, sons-in-law, daughters-in-law, aunts, uncles, first cousins, legal guardians, and members of the teacher's household.
- B. A physician's certificate shall be required by the Board after an absence of five (5) consecutive days.
- C. Teachers, who have missed two or fewer school days exclusive of personal days, shall receive a bonus of two hundred dollars (\$200) on or before June 10 of that school year. Teachers who are not employed for the entire year are not eligible for this bonus.
- D. Sick leave may be taken in units of full, half, or quarter days.
- E. Part-time employees shall be granted sick leave in proportion to the length of annual contractual service to the District.

6.8 Sick Bank

Intent of the Bank: The Sick Leave Bank has been established to provide extended sick leave to members of the Sick Leave Bank who incur a period of prolonged illness, injury, or hospitalization.

- A. Teachers are eligible to participate voluntarily in the Sick Leave Bank. Participants must submit written notice of intent to participate. Participants must join by October 1 of each school year.
- B. A Sick Leave Bank Committee, consisting of three (3) teachers appointed by the Thornton Education Association Board, will administer the Sick Leave Bank.

- C. All members will contribute two (2) sick days their first year and one (1) every year thereafter until the Bank reaches one hundred fifty (150) days.
- D. Authorized withdrawals by participating teachers from the Sick Leave Bank shall be made only upon the approval of the majority members of the Sick Leave Bank Committee and their decision will be final.
- E. No one shall draw from the Bank until a doctor's certificate of illness is presented to the Committee and that person has depleted all of his/her accumulated sick days, and gone for two (2) days without wages. The Bank is only applicable for the illness of the teacher. Members are eligible to draw on the Bank for only one (1) illness per year.
- F. The illness or disability must have caused absence from employment for at least ten (10) working days for the same illness.
- G. A teacher who qualifies may draw from the Bank up to twenty (20) days.
- H. Membership may be canceled by submitting a notice in writing to the Sick Leave Bank Committee. Cancellation of membership means forfeiture of any claim to contributed days and benefits of members.
- I. If the Sick Leave Bank is terminated, the available days will be pro-rated by the Sick Leave Committee to contributing members employed at the time of termination.
- J. Membership in the Sick Leave Bank will not affect 6.7, C.

6.9 Personal Business Leave

- A. Each teacher shall have two (2) days each year to arrange personal business. Personal Leave days must be taken in units of full, half, or quarter days. Teachers shall be allowed to accrue up to five (5) personal days. Any unused personal days or portions thereof in excess of the allowed accrual shall be treated as accumulated and unused sick leave.
- B. Personal leave days may be used as sick leave.
- C. Personal leave days must be approved by the Superintendent. Requests should be made forty-eight (48) hours in advance. In the event of an emergency, the Superintendent shall decide whether or not they are allowable.
 - 1. Only one personal leave day shall be allowed for a day immediately before or after a holiday or scheduled vacation and will require a minimum of two weeks' notice. No more than one employee shall be approved on any given day in this manner and priority shall be given on a first-come, first-

served basis. Personal leave shall not be allowed during the first or last week of school, on days of a workshop, or an in-service training day.

2. Personal leave shall be used only for personal business that the teacher cannot conduct outside of the regular school day and may not be used during a work stoppage of any kind.
 3. Should emergencies exist in 1 or 2 above, the Superintendent may waive the restriction.
- E. Any day taken off by District 154 employees for religious holiday observance must be deducted from personal leave days.
- F. Part-time employees shall be granted personal leave in proportion to the length of annual contractual service to the District.

6.10 General Conditions for Approved Leaves

- A. Teachers on approved leave may participate in available insurance programs but at their own expense, unless otherwise provided for in this Agreement, if approved by the insurance carrier.
- B. On or before March 1 of each academic year the leave is in effect, the District shall send a certified letter to the teacher giving the teacher two weeks to respond. If that teacher does not respond by the end of the two week period, this shall be treated as an election by the teacher not to return to employment, and as a resignation from the District, and no action or grievance of any kind shall lie against the Board thereafter.
- C. The Board reserves the right to place the returning teacher in his/her prior position or in any other available position that the teacher holds a valid certificate to teach.

ARTICLE VII COMPENSATION

7.1 Payroll Checks

Payroll checks shall be regularly issued to teachers on a twenty-two (22) pay basis. The payments will be based on a divisor of twenty-six (26) with twenty-one (21) equal payments with the twenty-second (22nd) payment being the balance amount due the last day of school whenever practical to do so.

7.2 Deductions

Deductions shall be made for tax-sheltered annuities, Credit Union, professional dues, U.S. Savings Bonds, and insurance. These deductions shall be forwarded to the appropriate institutions within five (5) working days after the scheduled pay date. Payments shall be made by certified mail and/or hand delivered by the School District when authorized by the Superintendent.

7.3 Salary Schedule

See Appendix "A".

7.4 Salary Schedule Movement

A. Degree Status

Teachers enrolled in a master's program may move both vertically and horizontally on the salary schedule upon successful completion of that program.

B. Course Requirements

A teacher will receive credit for classes taken, including beyond a Bachelor's and/or Master's degree, upon presentation of transcripts, certified to the School District, mailed directly from a college or university reflecting credit hours for courses previously approved by the Superintendent, earned in education or a related field. Official transcripts for adjustments must be received by October 30.

7.5 Tuition Reimbursement

- A. Full time teachers shall be eligible for reimbursement for tuition for approved courses up to \$1,000 per year. In addition to tuition, teachers may be reimbursed for fees that are required by an institute of higher learning in order to take and successfully complete a course. Examples of such fees include but are not limited to lab fees and activity fees required for registration. Proof of payment (i.e. receipt) and successful completion of the course/courses (i.e. official transcript) for which the tuition reimbursement is requested will be required.

The District will not reimburse any fees, costs or expenses which are not defined above. Examples of fees and costs not reimbursable include but are not limited to late registration fees, costs of books and parking fees.

If there is a dispute as to whether or not a fee should be paid, the Superintendent of Schools will make the final decision.

- B. If a teacher is requested to take a course or courses by the Board, all tuition, fees, and books/supplies shall be paid by the Board.

7.6 Insurance

A. Health

Beginning the 2017-2018 school year, the Board shall pay 100% of Single HMO and 75% of Single PPO, Employee and Child, Employee and Spouse, and Family.

B. Dental

- | | |
|-----------|--------------------------------|
| 1. Single | 100% of Single |
| 2. Family | 100% of Single + 75% Dependent |

Vision

- | | |
|-----------|--------------------------------|
| 1. Single | 100% of Single |
| 2. Family | 100% of Single + 50% Dependent |

C. Premium Increases/Decreases

Any premium increase or decrease in subsequent years for dependent health coverage will be shared equally by the District and employee. At no time will either the District or employee contribution be below \$0. In such a case, the additional amount will be shifted to the other party.

D. Insurance Committee

The District shall annually hold an insurance committee consisting of two teachers, one support staff, and one administrator. This committee will have discretion to change the insurance plan design (deductibles, etc.) in order to reduce costs. If the plan design change results in an additional cost to the Board

in excess of what the cost would have been without the change, the change can only occur with a majority vote of the Board.

- E. Coverage is provided to full-time employees only.
- F. Coverage will be provided from the first day of employment.
- G. The Board will also maintain PPO coverage for all interested bargaining unit members. Those members who have elected PPO coverage will pay the difference between the cost of the HMO coverage and the PPO.
- H. Any teacher opting to not take the District health insurance for an entire school year shall be paid an incentive of \$1,000 at the conclusion of that school year. For each concurrent year, this incentive will increase by \$100 annually and will reset to \$1,000 if the teacher chooses to take District health insurance. This incentive shall not exceed \$1,400 annually.

7.7 Retirement Bonus

The Board agrees to provide the following benefits to each employee who qualifies:

- A. For those teachers with fifteen (15) years of full time service in the District, or its equivalent, two thousand five hundred dollars (2,500.00) shall be paid as a severance payment, and not as additional salary, no less than thirty (30) days and no more than ninety (90) days after the teacher's last day of employment with the District.
- B. For those teachers with twenty (20) years service in the District, the Board shall pay the teacher a 5% retirement incentive bonus, inclusive of all other increases in TRS credible compensation, in each of the teacher's remaining years of service, up to three (3) years.
- C. To be eligible for the severance payment under subpart A above, the employee must not participate in ERO and must have submitted to the superintendent before March 1 prior to the last school year of employment, a letter of intention to retire at the end of that following school year. To be eligible for the retirement incentive bonus under subpart B above, the employee must not participate in ERO and must have submitted to the superintendent before March 1 of the school year preceding receipt of the incentive a letter of intention to retire at the end of a specified school year. Further, no teacher will be eligible to receive a retirement incentive bonus under subpart B above if payment of that bonus will cost the district a penalty or will result in the assessment by the TRS of an employer payment for exceeding a 6% increase credible earnings for any school year used to calculate the teacher's TRS pension benefit. A teacher affected by the death of his/her spouse may rescind a letter of resignation if accomplished on or before March 1 of the last year of employment if a refund check for the additional compensation paid out in accordance with section A or B accompanies the letter to rescind. If such a situation arises after March 1, the Board

retains its discretion to accept or reject a written request to rescind a letter of resignation. To the extent permitted by law, any teacher who accepts any retirement bonus, and then applies for ERO, must repay the full amount of the bonus. Remaining compensation will be diminished by the percentage previously paid.

- D. Subparts A & B are mutually exclusive of each other. Any eligible teacher must choose either A or B.
- E. For those teachers with twenty (20) years of service in the District, the District shall purchase all unused sick leave that a teacher has accrued during their tenure and is NOT being used toward retirement at a cost of \$50.00 per day. This shall be paid to the teacher no later than 120 days after the close of the teacher's final school year.
- F. Section 7.7 will be evaluated and renegotiated at the conclusion of this contract.

7.8 Early Retirement-TRS Insurance

For each 1.5 years of service to the District, the District shall pay one year, up to a maximum of thirteen (13) years of the retiree's portion of the TRS single monthly premium to a maximum of 25% of the TRS single premium amount if the teacher has been with the District twenty (20) consecutive years or more. This applies only to those teachers who have elected to participate in the TRS ERO option, or who have elected to receive the retirement bonus set forth in section 7.7 of the Professional Agreement. This benefit shall cease upon the retiree becoming eligible for Medicare.

7.9 Extra Duties

- A.
 - 1. No teacher shall be required to perform Daily/Seasonal activities and /or School Duties. If there is no teacher to fill these positions within four weeks before the start of the duty or by the first full day in-service, whichever comes first, the Board may opt to hire other qualified personnel.
 - 2. All extra duty positions shall be posted no later than May 15, of each year for the following school term. Written applications for posted positions shall be given to the Superintendent by the last day of the school term.
 - 3. Teachers will be selected on the basis of qualifications as determined by the Superintendent. Current sponsors have priority for the next school year if they have fulfilled the responsibilities of the position in the previous year.

B. Stipends

The annual stipends are contained in appendix B of the Agreement.

C. Payment

1. Daily/seasonal activities will be paid on a monthly basis.
2. Extracurricular duties will be paid within thirty (30) days of their completion.
3. School duties, such as extra teaching and ongoing supervision, will be paid on a per diem basis once a month or will be divided over the teacher's regular paychecks when the duties are yearlong with no specific hours.

7.10 Summer School

- A. If the Board chooses to hold a summer school program, teaching positions will be offered to other bargaining unit members who have the appropriate certificate requirements. If qualifications are identical, then length of service in the district and frequency of summer school assignments shall be considered.
- B. A tentative salary schedule shall be posted on or before May 1, prior to the beginning of the summer school session.
- C. Applications for summer school positions will be accepted between May 1 and May 30, prior to the beginning of the summer school session.

**ARTICLE VIII
REDUCTION IN FORCE**

8.1 Illinois School Code

Any reductions in certified personnel will be in compliance with the Illinois School Code.

8.2 Vacancies

Vacancies that occur when there has been a reduction force will be filled in accordance with the Illinois School Code.

8.3 Recall by Mail

A teacher's failure to respond affirmatively within ten (10) days after receipt of the mailing of the Board's offer of re-employment, sent by certified mail, return receipt

requested, to the teacher's address on file with the Board, shall terminate the teacher's right of recall hereunder.

8.4 Response to Recall

A teacher's acceptance or rejection of recall for a part-time position shall not affect the teacher's right to the next full-time vacancy pursuant to the terms of this Agreement.

8.5 Certification

Certification as used herein for the purpose of dismissal means the teaching certificate(s) and endorsements which are on file with the Board on March 1 of the year in which dismissals occur. Certification for the purpose of recall means the teaching certificate(s) and endorsements which are on file with the Board at the time of the offer of recall.

8.6 Seniority in Service

- A. Seniority as used herein shall be defined as regularly employed continuous uninterrupted service within the District. Seniority shall be measured in school years, with ninety (90) or more compensated days in a school term credited as one (1) year of seniority. Eighty-nine (89) or fewer compensated days in a school term shall not count toward seniority.
- B. Teachers receiving temporary disability from TRS or workman's compensation for illness or injury on the job shall have said compensated time count toward seniority credit.
- C. Approved paid leaves of absence shall not be considered an interruption in service for purposes of this Article

ARTICLE IX CLASS SIZE

9.1 Opportunity to Discuss Alternatives

The Administration shall notify the Association of projected class sizes as soon as possible after student registration. The Association may then timely request to meet to discuss educational issues and other possible cost cutting measures.

Research conducted by the Illinois State Board of Education indicated that the target class size for a standard elementary classroom (K-6) is 23 students. The same report

indicated that the targeted class size for junior high grades in the academic areas is 24 students. (Hinrichs, August 2000).

The Board will make every reasonable effort as is economically feasible to minimize class size. If the class sizes exceed the following levels, the District administration and the Association will commence discussions to determine the necessary steps to reduce the class size and utilize present resources.

K-3 – 23 students
4-6 – 25 students
7-8 – 27 students

If the class sizes exceed the following levels and additional staffing has not been provided, the District administration and the Association will meet to determine the necessary steps to further reduce the class size.

K-4 – 27 students
5-8 – 30 students

If a teacher in Kindergarten through Fourth grade has more than twenty-seven (27) rostered students, then that teacher will be compensated at the rate of \$5.00 per student per day. If a teacher in Fifth through Eighth grade has more than thirty (30) rostered students, then that teacher will be compensated at the rate of \$1.00 per student per period.

ARTICLE X EVALUATION

10.1 Orientation

- A. At the start of the school term (i.e., the first day students are required to be in attendance), the school district shall provide a written notice (either electronic or paper) that a performance evaluation will be conducted in that school term to each teacher affected or, if the affected teacher is hired after the start of the school term, then no later than 30 days after the contract is executed. The written notice shall include:
1. a copy of the rubric to be used to rate the teacher against identified standards and goals and other tools to be used to determine a performance evaluation rating;
 2. a summary of the manner in which measures of student growth and professional practice to be used in the evaluation relate to the performance evaluation ratings of “excellent”, “proficient”, “needs improvement”, and

“unsatisfactory” as set forth in Sections 24A-56 and 34-85c if the School Code; and

3. a summary of the district’s procedures related to the provisions of professional development in the event a teacher receives a “needs improvement” or remediation in the event a teacher receives an “unsatisfactory” rating to include evaluation tools to be used during the remediation period.

- B. A new teacher shall be notified by the administration of the evaluation procedure in effect. Such notification shall be within two (2) weeks of the first day of the new assignment.

10.2 Procedures

- A. Probationary teachers shall be formally evaluated at least two (2) times during each year, and the second evaluation shall be completed no later than March 1 of each school year.
- B. Tenured teachers shall be formally evaluated at least once every two (2) years. If a teacher is evaluated once, or more than once in any year, at least one (1) evaluation shall be completed no later than March 1. The initial classroom observation shall be scheduled no later than February 15.
- C. Each formal evaluation shall be preceded by at least one (1) classroom observation of at least thirty (30) minutes in duration. The parties acknowledge that, if a teacher is assigned to teach more than one (1) subject, the observation should include more than one (1) subject. The date, the time of day, and the duration of observations shall be included in the formal evaluation document.
- D. At least one (1) conference shall be held between the teacher and the evaluator within fourteen (14) working days following the last formal classroom observation. If the evaluation document is not available at the time of such conference, another conference shall be held at the time of presentment of the evaluation document no later than ten (10) additional work days after the observation. Copies of the evaluation signed by both parties shall be placed in the teacher’s personnel file. One (1) signed copy shall be provided to the teacher to keep.
- E. If the teacher feels his/her formal written evaluation is incomplete, inaccurate, or unjust, he/she may put his/her objections in writing and have them attached to the evaluation report to be placed in his/her personnel file. A copy signed by both parties shall be retained by the teacher.
- F. No evaluation shall contain references to the previous school year or the previous evaluation if issues raised in those evaluations have been corrected and so noted to the affected teacher by the Administration.

10.3 Criteria and Instrument

- A. The parties to this Agreement shall establish an evaluation committee which shall consist of at least two (2) representatives of the Board and at least two (2) representatives appointed by the President of the Association.
- B. Either party to this Agreement may annually re-establish this Evaluation Committee for the purposes of reviewing and/or revising any criteria, job responsibilities. Procedures or instrument by serving written notice on the other party by September 1, of their desire to re-establish the Evaluation Committee.

ARTICLE XI EFFECT OF AGREEMENT

11.1 Negotiations and Agreements

Amendments to this Agreement must be agreed upon by both parties, reduced to writing, signed and made part of this Agreement.

11.2 Impasse

It is agreed that, incase of impasse, the parties will jointly request the FMCS. Should FMCS be unavailable, the parties shall immediately commence discussions as to a replacement. In the event that the parties cannot agree upon a replacement, the IELRB shall be notified.

11.3 Invalidity

Any provision of the Agreement which violates the Illinois School Code, the Illinois Educational Labor Relations Act, or any other law of the State of Illinois or of the United States of America shall be ineffective to the extent of such violation or unlawful delegation without invalidating the remaining provisions of this Agreement. In the event any provision is ruled to be ineffective, negotiations concerning the ineffective provision shall commence within fifteen (15) days. All understandings and agreements reached under this procedure shall be reduced to writing, signed by each party, and made a part of the Collective Bargaining Agreement.

11.4 Complete Understanding

The terms and conditions set forth in this Agreement represent the full and complete understanding between the parties.

11.5 No Strike Provision

During the term of this Agreement and any mutually agreed upon extension thereof, no teacher covered by this Agreement, nor the Association, nor any person acting on behalf of the Association shall engage in, authorize or instigate a strike and/or slowdown. The District agrees that it will not lock out employees during the term of this Agreement.

11.6 Appendices

The appendices attached to this Agreement shall be deemed a part of this Agreement.

11.7 Duration

This Agreement shall be in effect from the first day of the 2017-2018 school year through the day before the first day of the 2022-2023 school year.

**ARTICLE XII
COMMENCEMENT OF NEGOTIATIONS**

12.1 Commencement

Negotiations shall begin no later than April 1, 2027 unless both parties agree to an alternate date. Negotiations meetings shall be held as necessary at times and places agreed to by both parties.

**ARTICLE XIII
ACCEPTANCE**

13.1 Ratification and Adoption

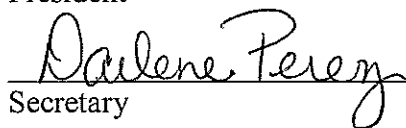
This Agreement has been ratified and is adopted by the parties hereto:

In witness thereof:

For the Thornton Education Association-IEA-
NEA
District 154



President

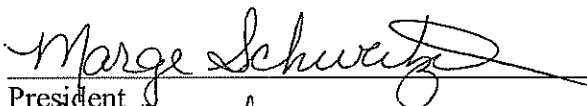


Secretary

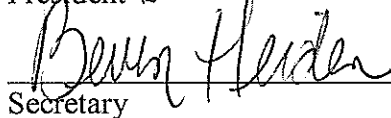
6-13-22

Date

For the Board of Education
Cook County School District 154



President



Secretary

6-13-22

Date

APPENDIX A

2022-2027

BA – Year	2022-2023	2023-2024	2024-2025	2025-2026	2026-2027
1	40250	42250	43750	45250	46750
2	40750	42750	44750	45750	47250
3	41250	43250	45250	46750	47750
4	41750	43750	45750	47250	48750
5	42250	44250	46250	47750	49250
6	42750	44750	46750	48250	49750
7	43850	45500	47250	48750	50250
8	45050	46600	48000	49250	50750
9	46350	47800	49100	50000	51250
10	47750	49100	50300	51100	52000
11	49250	50500	51600	52300	53100
12	51250	52000	53000	53600	54300

Teachers in excess of 12 years of service shall receive an annual increase of \$3,000 for the school years 2022-2023.

Teachers in excess of 12 years of service shall receive an annual increase of \$2,750 for the school years 2023-2027.

In no event, however, shall any teacher's total TRS-creditable earnings during any one of that teacher's last four (4) years prior to retirement exceed one hundred six percent (106%) of the previous year's total TRS-creditable earnings from the District.

With completion of a Master's degree and submittal of official transcripts, the teacher will receive \$2,500 increase.
For each hour of coursework of Master's level or above, with completion of class and submittal of official transcripts, the teacher will receive \$50 per credit hour up to Master's + 30 credit hours.

APPENDIX B

Stipends

2022-2027

- A. 1. All extra duty positions are for one supervisor unless otherwise noted. If two are desired, then the stipend shall be shared.
2. All extra duties may begin at the close of the student day except where the supervisor may use his/her plan or lunch period.

B. Daily/Seasonal Activities

	<u>Seasonal Activity</u>	<u>Stipend</u> <u>2022-2027</u>
1.	8 th Grade Basketball (1)	2,000
2.	7 th Grade Basketball (1)	2,000
3.	6 th Grade Basketball (1)	2,000
4.	5 th Grade Basketball (1)	2,000
5.	8 th Grade Volleyball (1)	2,000
6.	7 th Grade Volleyball (1)	2,000
7.	Cheerleader 7 th and 8 th (1)	1,000
8.	Cheerleader 5 th and 6 th (1)	1,000
9.	Boys' Track (1)	1,000
10.	Girls' Track (1)	1,000
11.	Chorus (1)	1,100
12.	Band (1)	2,000
13.	Student Council (1)	1,000
14.	Drama Sponsor	1,050
15.	Fine Arts	550

Above Stipends shall increase by \$50 every even year.

	<u>Daily Activity</u>	<u>Stipend</u> <u>2022-2027</u>
1.	Basketball Game Supervision	45.00
2.	Volleyball Supervision	45.00
3.	Extra Curricular Supervision	45.00
4.	Spelling Bee Coordinator	45.00
5.	Science Fair Coordinator	100.00
6.	Science Fair Judge	45.00

When a coach is working with two (2) teams at the same time, the rate of the pay shall be an additional 50% of the listed rate.

Only one (1) stipend will be paid for each duty/seasonal activity. If two individuals share the activity, they will split the stipend.

APPENDIX B
Stipends

C. School Duties

<u>Seasonal Activity</u>	<u>Stipend</u> <u>2022-2027</u>
1. Internal Substitution (per period)	35.00
2. Summer Work Stipend (hourly)	30.00
3. Lunch/Playground Supervision (up to 4)(per day)	15.00
4. School Detention Period – 1 or 2 days (1)(per detention period)	30.00
5. A.M. Playground Supervision (per day)	5.50
6. P.M. Playground Supervision (per day)	5.50
7. Dean of Students (1)	4,100
8. Saturday Detention (per hour)*	30.00
9. Athletic Director	2,000
10. Readers are Leaders	650
11. After School Program	30.00

*More than one (1) student for the security of the supervisor.

Lunchroom supervision will increase \$1.00 per day on even years.

Substitutes serving lunch duty shall be paid at the internal substitution rate.